Gauthier v. Goodyear Tire & Rubber Co. (1:23-cv-00281)

District Court, E.D. Texas

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Assigned To: Marcia A. Crone (/person/764/marcia-a-crone/)

Citation: Gauthier v. Goodyear Tire & Rubber Co., 1:23-cv-00281, (E.D. Tex.)

Date Filed: July 20, 2023

Date Terminated: Dec. 19, 2024

Date of Last Known Filing: Jan. 2, 2026

Cause: 28:1332 Diversity-Notice of Removal (/?type=r&cause=%2228%3A1332+Diversity-Notice+of+Removal%22)

Nature of Suit: Civil Rights: Jobs (/?type=r&nature_of_suit=%22Civil+Rights%3A+Jobs%22)

Jury Demand: Both (/?type=r&q=juryDemand%3A%22Both%22)

Jurisdiction Type: Diversity

Docket Entries (/docket/67624744/gauthier-v-goodyear-tire-rubber-co/)

Parties and Attorneys (/docket/67624744/parties/gauthier-v-goodyear-tire-rubber-co/)

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	Date Filed	Description	CSV
1	Jul 20, 2023	NOTICE OF REMOVAL by Goodyear Tire & Rubber Co. from 60th Judicial District, Jefferson County, Texas, case number 23DCCV0554. (Filing fee $ 402 receipt number ATXEDC-9610596), filed by Goodyear Tire & Rubber Co.. (Attachments: # 1 Civil Cover Sheet, # 2 Exhibit A, # 3 Exhibit B, # 4 Exhibit C, # 5 Exhibit D, # 6 Exhibit E, # 7 Exhibit F, # 8 Exhibit G, # 9 Exhibit H, # 10 Exhibit I, # 11 Exhibit J)(Edwards, Kelley) (Entered: 07/20/2023)	
		Main Doc Notice of Removal	

Att 1	Civil Cover Sheet	
Att 2	Exhibit A	
Att 3	Exhibit B	
Att 4	Exhibit C	
Att 5	Exhibit D	
Att 6	Exhibit E	
Att 7	Exhibit F	
Att 8	Exhibit G	
Att 9	Exhibit H	
Att 10	Exhibit I	
Att 11	Exhibit J	

2	Jul 20, 2023	DEMAND for Trial by Jury by Goodyear Tire & Rubber Co. (Edwards, Kelley) (Entered: 07/20/2023)
		Main Doc Jury Demand
3	Jul 20, 2023	Fed. R. Civ. P. 7.1(a)(1) Disclosure Statement filed by Goodyear Tire & Rubber Co. (Edwards, Kelley) (Entered: 07/20/2023)
		Main Doc Disclosure Statement/Certificate of Interested Persons
4	Jul 20, 2023	***FILED IN ERROR.*** NOTICE of Attorney Appearance by Kelley Riddle Edwards on behalf of Goodyear Tire & Rubber Co. (Edwards, Kelley) Modified on 7/21/2023 (bjc,). (Entered: 07/20/2023)
		Main Doc Notice of Attorney Appearance
	Jul 21, 2023	***FILED IN ERROR. Document # 4, notice of attorney appearance. Attorney wanting to appear needs to file the notice.*** (bjc,)
	Jul 21, 2023	Notice of Docket Correction
	Jul 21, 2023	Notice of Magistrate Availability
5	Jul 21, 2023	***ORIGINALLY FILED IN STATE COURT AND IS INCLUDED IN THE NOTICE OF REMOVAL.*** PETITION against Goodyear Tire & Rubber Co..(bjc,) (Entered: 07/21/2023)
		Main Doc Complaint
	Jul 21, 2023	Case Assigned/Reassigned
	Jul 21, 2023	Case assigned to District Judge Marcia A. Crone. (bjc,)
	Jul 21, 2023	Notice of Magistrate Judge Availability
	Jul 21, 2023	Jury Demand
	Jul 21, 2023	In accordance with the provisions of 28 USC Section 636(c), you are hereby notified that a U.S. Magistrate Judge of this district court is available to conduct any or all proceedings in this case including a jury or non-jury trial and to order the entry of a final judgment. The form Consent to Proceed Before Magistrate Judge is available on our website. All signed consent forms, excluding pro se parties, should be filed electronically using the event Notice Regarding Consent to Proceed Before Magistrate Judge. (bjc,)
	Jul 21, 2023	DEMAND for Trial by Jury by James Gauthier. (bjc,)
6	Jul 21, 2023	ORDERED that Rule 26(f) conference must occur by August 18, 2023. Joint written report filed no later than September 1,2 023. Signed by District Judge

Marcia A. Crone on 6/21/2023. (bjc,) (Entered: 07/21/2023)

Main Doc	Order	
7	Jul 21, 2023	NOTICE of Attorney Appearance by Urvashi Morolia on behalf of Goodyear Tire & Rubber Co. (Morolia, Urvashi) (Entered: 07/21/2023)
		Main Doc Notice of Attorney Appearance
	Jul 24, 2023	NOTICE of Hearing: Status Conference set for 9/8/2023 at 2:00 PM in Chambers (Beaumont) before District Judge Marcia A. Crone. Counsel must appear in person.(jc,)
	Jul 24, 2023	Notice of Hearing
8	Jul 27, 2023	MOTION to Dismiss Plaintiff's Original Complaint Under Rule 12(b)(6) by Goodyear Tire & Rubber Co.. (Attachments: # 1 Proposed Order)(Edwards, Kelley) (Entered: 07/27/2023)
		Main Doc Motion to Dismiss
9	Aug 9, 2023	Unopposed MOTION for Extension of Time to File Response/Reply as to 8 MOTION to Dismiss Plaintiff's Original Complaint Under Rule 12(b)(6) by James Gauthier. (Attachments: # 1 Proposed Order)(Monk, Brandon) (Entered: 08/09/2023)
		Main Doc Motion for Extension of Time to File Response/Reply
	Aug 10, 2023	NOTICE of Rescheduled Hearing: Scheduling/Case Management Conference reset for 10/13/2023 at 02:30 PM in Beaumont Courthouse before District Judge Marcia A. Crone. Counsel must appear in person.(jc,)
	Aug 10, 2023	Notice of Hearing
10	Aug 10, 2023	ORDER granting the 9 Unopposed MOTION for Extension of Time to File Response to 8 MOTION to Dismiss Plaintiff's Original Complaint Under Rule 12(b)(6). Gauthier's response to Goodyear's Motion to Dismiss shall be due on or before Thursday, August 17, 2023. The court cautions the parties that any further requests for extensions must comply with Federal Rule of Civil Procedure 6(b) and provide "good cause." FED. R. CIV. P. 6(b). Signed by District Judge Marcia A. Crone on 8/10/23. (kcv,) (Entered: 08/11/2023)
		Main Doc Order on Motion for Extension of Time to File Response/Reply
11	Aug 17, 2023	AMENDED COMPLAINT against Goodyear Tire & Rubber Co., filed by James Gauthier.(Monk, Brandon) (Entered: 08/17/2023)
		Main Doc Amended Complaint
12	Aug 21, 2023	MOTION to Remand to State Court by James Gauthier. (Attachments: # 1 Proposed Order)(Monk, Brandon) (Entered: 08/21/2023)
		Main Doc Motion to Remand to State Court
13	Aug 31, 2023	MOTION to Dismiss Plainitff's First Amended Complaint Under Rule 12(b)(6) by Goodyear Tire & Rubber Co.. (Edwards, Kelley) (Additional attachment(s) added on 8/31/2023: # 1 Proposed Order) (bjc,). (Entered: 08/31/2023)
		Main Doc Motion to Dismiss
14	Aug 31, 2023	RESPONSE in Opposition re 12 MOTION to Remand to State Court filed by Goodyear Tire & Rubber Co.. (Edwards, Kelley) (Entered: 08/31/2023)
		Main Doc Response in Opposition to Motion
15	Sep 1, 2023	NOTICE of Initial Disclosure by James Gauthier (Monk, Brandon) (Entered: 09/01/2023)

Main Doc	Notice of Discovery Disclosure		
16	Sep 1, 2023	REPORT of Rule 26(f) Planning Meeting. (Edwards, Kelley) (Entered: 09/01/2023)	
		Main Doc	Report of Rule 26(f) Planning Meeting
17	Sep 1, 2023	Submission of Proposed Agreed Docket Control/Scheduling order by Goodyear Tire & Rubber Co. . (Edwards, Kelley) (Entered: 09/01/2023)	
		Main Doc	Proposed Agreed Docket Control/Scheduling, Protective or Discovery Order
18	Sep 5, 2023	Unopposed MOTION for Extension of Time to File Response/Reply as to 13 MOTION to Dismiss Plainitff's First Amended Complaint Under Rule 12(b)(6) by James Gauthier. (Attachments: # 1 Proposed Order)(Monk, Brandon) (Entered: 09/05/2023)	
		Main Doc	Motion for Extension of Time to File Response/Reply
19	Sep 8, 2023	NOTICE of Discovery Disclosure by Goodyear Tire & Rubber Co. (Edwards, Kelley) (Entered: 09/08/2023)	
		Main Doc	Notice of Discovery Disclosure
20	Sep 11, 2023	ORDER granting 18 Unopposed MOTION for Extension of Time to File Response to 13 MOTION to Dismiss Plainitff's First Amended Complaint Under Rule 12(b)(6) . Gauthier's response to Goodyear's Motion to dismiss (#13) shall be due on or before Thursday, September 21, 2023. Signed by District Judge Marcia A. Crone on 9/11/2023. (bjc,) (Entered: 09/12/2023)	
		Main Doc	Order on Motion for Extension of Time to File Response/Reply
21	Sep 11, 2023	ORDER denying as moot 8 Motion to Dismiss. Signed by District Judge Marcia A. Crone on 9/11/2023. (bjc,) (Entered: 09/12/2023)	
		Main Doc	Order on Motion to Dismiss
22	Sep 21, 2023	RESPONSE to Motion re 13 MOTION to Dismiss Plainitff's First Amended Complaint Under Rule 12(b)(6) filed by James Gauthier. (Attachments: # 1 Proposed Order)(Monk, Brandon) (Entered: 09/21/2023)	
		Main Doc	Response to Motion
23	Sep 21, 2023	OPPOSED MOTION for Leave to File Second Amended Complaint by James Gauthier. (Attachments: # 1 Proposed Order)(Monk, Brandon) (Entered: 09/21/2023)	
		Main Doc	Motion for Leave to File
24	Sep 21, 2023	AMENDED COMPLAINT Second Amended Complaint against Goodyear Tire & Rubber Co., filed by James Gauthier.(Monk, Brandon) (Entered: 09/21/2023)	
		Main Doc	Amended Complaint
25	Sep 27, 2023	REPLY to Response to Motion re 13 MOTION to Dismiss Plainitff's First Amended Complaint Under Rule 12(b)(6) filed by Goodyear Tire & Rubber Co.. (Edwards, Kelley) (Entered: 09/27/2023)	
		Main Doc	Reply to Response to Motion
26	Oct 4, 2023	RESPONSE to Motion re 23 OPPOSED MOTION for Leave to File Second Amended Complaint filed by Goodyear Tire & Rubber Co.. (Attachments: # 1 Proposed Order)(Edwards, Kelley) (Entered: 10/04/2023)	

Main Doc Response to Motion Att 1

Proposed Order

27	Oct 11, 2023	Submission of Proposed Agreed Docket Control/Scheduling order by Goodyear Tire & Rubber Co. Amended Scheduling Order. (Edwards, Kelley) (Entered: 10/11/2023)
		Main Doc — Proposed Agreed Docket Control/Scheduling, Protective or Discovery Order
28	Oct 13, 2023	Minute Entry for proceedings held before District Judge Marcia A. Crone: Scheduling Conference/Case Management Conference held on 10/13/2023 from 2:40-3:05 pm. Counsel convened in chambers on Friday, October 13, 2023, to inform the court of the facts and issues in this lawsuit. The court and counsel agreed to a scheduling order which will govern all future proceedings. Attorney Appearances: Plaintiff - Brandon Monk; Defense - Urvashi Morolia. (No exhibits)(Court Reporter Not Recorded.) (bjc,) (Entered: 10/16/2023)
		Main Doc — Scheduling Conference/Case Management Conference
29	Oct 16, 2023	SCHEDULING ORDER: Final Status Conference set for 8/2/2024 at 10:00 AM in Ctrm 3 (Beaumont) before District Judge Marcia A. Crone. Signed by District Judge Marcia A. Crone on 10/16/2023. (bjc,) (Entered: 10/16/2023)
		Main Doc — Scheduling Order/Docket Control Order
30	Oct 23, 2023	AMENDED COMPLAINT Third Amended against Goodyear Tire & Rubber Co., filed by James Gauthier.(Monk, Brandon) (Entered: 10/23/2023)
		Main Doc (/docket/67624744/30/gauthier-v-goodyear-tire-rubber-co/) — Amended Complaint
31	Nov 4, 2023	UNOPPOSED MOTION for Extension of Time to File Answer re 30 Amended Complaint Plaintiff's Third Amended Complaint by Goodyear Tire & Rubber Co.. (Attachments: # 1 Proposed Order)(Edwards, Kelley) (Entered: 11/04/2023)
		Main Doc — Motion for Extension of Time to File Answer
32	Nov 6, 2023	ORDER granting 31 Motion for Extension of Time. Goodyear has until November 20, 2023, to answer or otherwise respond to Plaintiff James Gauthiers Third Amended Complaint. Signed by District Judge Marcia A. Crone on 11/6/2023. (bjc,) (Entered: 11/06/2023)
		Main Doc — Order on Motion for Extension of Time to Answer
33	Nov 16, 2023	Defendant's ANSWER to 30 Amended Complaint Plaintiff's Third Amended Complaint by Goodyear Tire & Rubber Co..(Edwards, Kelley) (Entered: 11/16/2023)
		Main Doc — Answer to Amended Complaint
34	Jan 5, 2024	NOTICE Plaintiff's Designation of Expert Witnesses by James Gauthier (Monk, Brandon) (Entered: 01/05/2024)
		Main Doc — Notice (Other)
35	Jan 12, 2024	AGREED MOTION to Continue and Request for Extension of Deadlines by

Goodyear Tire & Rubber Co.. (Attachments: # 1 Proposed Order)(Edwards, Kelley) (Entered: 01/12/2024)

Main Doc	Motion to Continue	

36	Jan 30, 2024	AMENDED SCHEDULING ORDER granting the 35 Agreed Motion for Continuance and Request for Extension of Deadlines. Final Status Conference set for 11/1/2024 at 10:00 AM in Ctrm 3 (Beaumont) before District Judge Marcia A. Crone. The case will be set for Final Pretrial Conference and Trial at the Final Status Conference. The parties should be prepared to try the case by this date. Signed by District Judge Marcia A. Crone on 1/30/24. (kcv,) (Entered: 01/31/2024)
		Main Doc — Scheduling Order/Docket Control Order
37	Feb 5, 2024	NOTICE Defendant's Designation of Expert Witness by Goodyear Tire & Rubber Co. (Edwards, Kelley) (Entered: 02/05/2024)
		Main Doc — Notice (Other)
38	May 9, 2024	UNOPPOSED MOTION to Continue and Request for Extension of Deadlines by James Gauthier. (Attachments: # 1 Proposed Order)(Monk, Brandon) (Entered: 05/09/2024)
		Main Doc — Motion to Continue
39	May 10, 2024	AMENDED SCHEDULING ORDER: Final Status Conference set for 3/7/2025 at 10:00 AM before District Judge Marcia A. Crone. Signed by District Judge Marcia A. Crone on 5/10/2024. (KMH) (Entered: 05/13/2024)
		Main Doc — Scheduling Order/Docket Control Order
40	Sep 12, 2024	MOTION for Summary Judgment by Goodyear Tire & Rubber Co.. (Attachments: # 1 Appendix, # 2 Exhibit A, # 3 Exhibit B, # 4 Exhibit B-1, # 5 Exhibit B-2, # 6 Exhibit B-3, # 7 Exhibit B-4, # 8 Exhibit B-5, # 9 Exhibit B-6, # 10 Exhibit C, # 11 Proposed Order)(Edwards, Kelley) (Entered: 09/12/2024)
		Main Doc — Motion for Summary Judgment
41	Oct 2, 2024	RESPONSE re 40 MOTION for Summary Judgment filed by James Gauthier. (Attachments: # 1 Exhibit A, # 2 Proposed Order)(Monk, Brandon) (Entered: 10/02/2024)
		Main Doc (/docket/67624744/41/gauthier-v-goodyear-tire-rubber-co/) — Response to Motion
		Att 1 — Exhibit A
		Att 2 — Proposed Order
42	Oct 9, 2024	REPLY to Response re 40 MOTION for Summary Judgment filed by Goodyear Tire & Rubber Co.. (Edwards, Kelley) (Entered: 10/09/2024)
		Main Doc (/docket/67624744/42/gauthier-v-goodyear-tire-rubber-co/) — Reply to Response to Motion
43	Oct 16, 2024	SUR-REPLY to Reply to Response re 40 MOTION for Summary Judgment filed by James Gauthier. (Monk, Brandon) (Entered: 10/16/2024)

Main Doc	Sur-Reply to Reply to Response to Motion		
44	Nov 7, 2024	ORDER TO SHOW CAUSE. It is ordered that Brandon Monk show cause before the court in Courtroom #3, 300 Willow Street, Beaumont, Texas, (409) 654-2880, on Thursday, November 21, 2024, at 4:00 p.m.. Signed by District Judge Marcia A. Crone on 11/7/24. (ljw) (Entered: 11/08/2024)	
		Main Doc (/docket/67624744/44/gauthier-v-goodyear-tire-rubber-co/)	Order to Show Cause
45	Nov 15, 2024	MOTION for Leave to File Amended Response to Motion for Summary Judgment by James Gauthier. (Attachments: # 1 Proposed Order)(Monk, Brandon) (Entered: 11/15/2024)	
		Main Doc	Motion for Leave to File
		Att 1	Proposed Order
46	Nov 15, 2024	AMENDED RESPONSE re 40 MOTION for Summary Judgment filed by James Gauthier. (Monk, Brandon) (Entered: 11/15/2024)	
		Main Doc	Response to Motion
47	Nov 21, 2024	Minute Entry for proceedings held before District Judge Marcia A. Crone: Show Cause Hearing held on 11/21/2024 from 04:06 - 04:34. Court sanctioned attorney. Attorney Appearances: Plaintiff - Brandon Monk; Defense - Urvashi Morolia. No exhibits. (Court Reporter - Ruth Weese) (JC) (Entered: 11/21/2024)	
		Main Doc (/docket/67624744/47/gauthier-v-goodyear-tire-rubber-co/)	Show Cause Hearing
48	Nov 25, 2024	MEMORANDUM AND ORDER: granting 45 Plaintiff's Motion to Amend its Response. If Goodyear chooses, it may file a reply to the Amended Response within seven days of this order. If Goodyear files such a reply, Plaintiff may file a sur-reply within seven days of the reply. Signed by District Judge Marcia A. Crone on 11/25/2024. (CC: by email, Finance). (KMH) Modified text on 11/26/2024 (KMH). (Entered: 11/25/2024)	
		Main Doc (/docket/67624744/48/gauthier-v-goodyear-tire-rubber-co/)	Order
	Nov 26, 2024	**Issued receipt #100022063 to Brandon Monk for $2,000.00 in compliance with 48 Order (tkd)	
	Nov 26, 2024	Notice (Other)	
49	Nov 26, 2024	NOTICE OF COMPLIANCE by James Gauthier re 48 Order,, Memorandum & Opinion,, Terminate Motions, (Attachments: # 1 Exhibit A)(Monk, Brandon) (Entered: 11/26/2024)	
		Main Doc (/docket	Notice of Compliance

/67624744
/49/gauthier-
v-goodyear-
tire-rubber-co/)

Att 1 (/docket /67624744 /49/1/gauthier-v-goodyear-tire-rubber-co/) Exhibit A

50	Dec 2, 2024	REPLY to Response re 40 MOTION for Summary Judgment filed by Goodyear Tire & Rubber Co.. (Edwards, Kelley) (Entered: 12/02/2024)
		Main Doc (/docket /67624744 /50/gauthier-v-goodyear-tire-rubber-co/) Reply to Response to Motion
51	Dec 5, 2024	ORDER re sanction imposed on attorney Brandon Monk. Monk has satisfied the monetary sanction. The Clerk of Court is directed that the $2,000 monetary sanction is a penalty and need not be held in the court's registry. Signed by District Judge Marcia A. Crone on 12/5/2024. (CC: by email, Finance). (KMH) (Entered: 12/06/2024)
		Main Doc Order
52	Dec 9, 2024	SUR-REPLY to Reply to Response re 40 MOTION for Summary Judgment filed by James Gauthier. (Monk, Brandon) (Entered: 12/09/2024)
		Main Doc Sur-Reply to Reply to Response to Motion
53	Dec 18, 2024	MEMORANDUM AND ORDER granting 40 MOTION for Summary Judgment filed by Goodyear Tire & Rubber Co. Gauthier fails to present a claim that warrants relief. There remain no material facts in dispute, and Goodyear is entitled to judgment as a matter of law. Signed by District Judge Marcia A. Crone on 12/18/2024. (KMH) (Entered: 12/19/2024)
		Main Doc (/docket /67624744 /53/gauthier-v-goodyear-tire-rubber-co/) Order
54	Dec 19, 2024	FINAL JUDGMENT: Plaintiff James Gauthier shall take nothing by this suit. Signed by District Judge Marcia A. Crone on 12/19/2024. (KMH) (Entered: 12/19/2024)
		Main Doc Judgment
55	Dec 19, 2024	NOTICE OF COMPLIANCE by James Gauthier re 48 Order,, Memorandum & Opinion,, Terminate Motions, (Attachments: # 1 Exhibit A, # 2 Exhibit B)(Monk, Brandon) (Entered: 12/19/2024)
		Main Doc Notice of Compliance
		Att 1 Exhibit A
		Att 2 Exhibit B
56	Jan 2, 2025	PROPOSED BILL OF COSTS filed by Goodyear Tire & Rubber Co.. (Edwards, Kelley) (Entered: 01/02/2025)
		Main Doc Proposed Bill of Costs

57	Jan 2, 2025	Additional Attachments to Main Document: 56 Proposed Bill of Costs. Defendant's Memorandum of Authorities In Support of Its Bill of Costs. (Attachments: # 1 Exhibit A)(Edwards, Kelley) (Entered: 01/02/2025)	
		Main Doc	Additional Attachments to Main Document
58	Jan 6, 2025	BILL OF COSTS. Costs Taxed in the amount of $4,919.09. (KMH) (Entered: 01/06/2025)	
		Main Doc	Bill of Costs
59	Jan 15, 2025	NOTICE OF APPEAL as to 53 Order & 54 Judgment by James Gauthier. Filing fee $ 605, receipt number BTXEDC-10620128. (Monk, Brandon) (Entered: 01/15/2025)	
		Main Doc	Notice of Appeal
	Jan 22, 2025	NOTICE of Docketing Notice of Appeal from USCA re 59 Notice of Appeal filed by James Gauthier. USCA Case Number 25-40021. (KMH)	
	Jan 22, 2025	USCA Notice of Docketing NOA	
	Jan 22, 2025	USCA Notice of Docketing ROA	
	Feb 19, 2025	NOTICE of certification of eROA provided to Fifth Circuit Court of Appeals. (KMH)	
	Feb 19, 2025	USCA Notice of Certification of eROA	
	Feb 25, 2025	USCA Notice of eROA Record Acceptance	
	Feb 25, 2025	USCA Fifth Circuit Notice - Original record on appeal is accepted. (KMH)	
	Feb 25, 2025	USCA Availability of eROA	
	Feb 25, 2025	Appeal Remark re: Counsel can access the record on appeal by following the instructions in the link. If an appearance wasn't made in the appellant court, counsel doesn't have access through the link. Link to Instructions. (KMH)	
60	Jan 2, 2026	Main Doc	USCA Mandate